



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 01, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 13269
(SIXTH REVISION)

EXPIRATION DATE: 2026-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Brenntag Mid-South, Inc.
Henderson, KY
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-way transportation in commerce of ammonia, anhydrous in a DOT specification cylinder that has developed a leak. The cylinder is equipped with an emergency kit to prevent leakage during transportation. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that marking the special permit number on the packaging is waived; § 173.24(b) in that the cylinder has a leak; and § 173.301(f) in that the pressure relief device may not be operational, due to the application of an emergency kit.
5. BASIS: This special permit is based on the application of Brenntag Mid-South, Inc., dated July 2, 2018, submitted in accordance with § 107.109.

Tracking Number: 2022054856

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a DOT Specification 3A480 or 3AA480 cylinder which has developed a leak in the valve or the sidewall. The cylinder must be temporarily repaired by trained personnel with an emergency kit in accordance with a pamphlet entitled "Indian Springs Anhydrous Ammonia Cylinder Emergency Kit"; Edition 2 dated January 1997 on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

b. OPERATIONAL CONTROLS:

(1) The cylinder may be transported by private motor carrier one way from the point of discovery to an appropriate facility for discharge and examination.

(2) No cylinder may leak hazardous materials during transportation.

(3) Training for personnel making the repairs in this special permit must include:

(i) Proper use of the devices and tools in the emergency kit;

(ii) Use of respiratory equipment and all other safety equipment;

(iii) Knowledge of the properties of anhydrous ammonia.

(4) Cylinders repaired with the emergency kit must be properly blocked and braced to ensure the packagings are secured in the transport vehicle.

(5) When the application of the emergency kit precludes the operation of the pressure relief device, emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the packages do not have operational pressure relief devices and provide appropriate guidance for exposure to fire.

(6) The driver of the transport vehicle must be instructed that when the vehicle is in an accident involving spilled fuel or fire, the vehicle must be moved to a safe location unless moving the vehicle would directly endanger the driver or others.

8. SPECIAL PROVISIONS: The marking requirements of § 172.301(c) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard the motor vehicle used to transport the package covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)-'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a faint, circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG